

26STCV13556 26STCV13556

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-27

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Case Number: 26STCV13556 Hearing Date: July 27, 2026 Dept: 512

HEARING DATE: Mon., July 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Moshfegh

v. Swanston COMP.

FILED: 04-28-26

CASE NUMBER: 26STCV13556

NOTICE: OK

PROCEEDINGS: MOTION TO EXPUNGE LIS PENDENS

MOVING PARTY: Plaintiff

Kamyar Moshfegh

RESP. PARTY: None

MOTION TO EXPUNGE LIS PENDENS

(Code

Civ. Proc., § 405.20, et seq.)

TENTATIVE RULING:

Plaintiff Kamyar Moshfegh's Motion

to Expunge Lis Pendens or Alternatively to Require Defendant to File an

Undertaking and for Attorney's Fees and Costs is DENIED WITHOUT PREJUDICE.

The Court also issues a Nunc Pro Tunc

Order regarding the 6/26/26 Minute Order filed in this matter. The 6/26/26 Minute Order, in pertinent part, states: "The Motion to Expunge Lis Pendens filed by Kamyar Moshfegh on 06/25/2026 is Granted." This line is hereby STRICKEN and REPLACED with the following: "The Ex Parte Application to Advance Motion Hearing filed by Kamyar Moshfegh is Granted."

Moving party is ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 22, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 22, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On April 28, 2026, Plaintiff Kamyar Moshfegh ("Plaintiff") filed the instant action against Defendants Orville Swanston, as an individual and as Trustee of the Orville Swanston Trust, ("Defendant") and Does 1-25, alleging causes of action for Specific Performance for Breach of Contract to Sell Real Property, Damages for Breach of Contract, and Declaratory Relief. (Compl., p. 1.)

On May 4, 2026, Plaintiff filed a
Notice of Lis Pendens.

On May 14, 2026, Defendant filed an
Answer.

On May 18, 2026, the instant action
was ordered related to Case No. 26STCV11926. (5/18/26 Order.)

On June 25, 2026, Plaintiff filed the
instant Motion to Expunge Lis Pendens or Alternatively to Require Defendant to
File an Undertaking and for Attorney's Fees and Costs (the "Motion").

On June 26, 2026, the Court advanced
the Motion hearing date and ordered moving party to give notice. (6/26/26
Order.)

On July
20, 2026, Plaintiff filed a Notice of Defendant's Failure to File Timely
Opposition to Plaintiff's Motion.

On July 22, 2026, an untimely
opposition to Plaintiff's Motion to Expunge Lis Pendens has been filed by Defendant
Orville Swanston.

On July 22, 2026, an untimely reply was
filed.

II. Discussion

Plaintiff moves to expunge the lis
pendens filed in Case No. 26STCV11926 recorded by Defendant on April 14, 2026,
against the real property located at 7028 Alvern Street, Los Angeles, CA 90045,
APN 4103-007-020. (Motion, p. 2.)

Relatedness and Consolidation

First, the Motion appears to be made in
regard to Case No. 26STCV11926 but was filed in the instant Case No.

26STCV13556. From the moving papers, it appears to this Court that the Motion was filed in the instant matter due to Plaintiff's misconception that Case No. 26STCV11926 and Case No. 26STCV13556 have been consolidated. For example, the Motion states: "Pursuant to the Court's Minute Order dated May 18, 2026, these actions have been consolidated for all purposes under Lead Case No. 26STCV11926. Because the subject real property claims are identical, Buyer brings this motion in the consolidation action to lift the improper cloud on title." (Motion, p. 1.)

However, Case No. 26STCV11926 and Case No. 26STCV13556 are related but are not currently consolidated.

Given the current status of Case No. 26STCV11926 and Case No. 26STCV13556, there is no lis pendens filed by Defendant in this action, and thus the merits of the Motion are nonexistent. Indeed, there has only been a lis pendens filed by Plaintiff in the instant action.

Based thereon, the Motion is DENIED
WITHOUT PREJUDICE.

Nunc Pro Tunc Order

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed." (Code Civ. Proc., § 473, subd. (d).) "[I]f a clerical error has been committed, as a result of which the judgment attacked is not the true judgment of the court, the trial court may amend its judgment to speak the truth.... [T]he trial court must determine whether or not the amendment sought will be the correction of clerical error or an attempt, under the guise of correcting such error, to in fact correct judicial error." (Lane v. Superior Court of Siskiyou County (1950) 98 Cal.App.2d 165, 169.)

"A clerical error in a judgment, 'as regards correction, includes one made by the court which cannot reasonably be attributed to exercise of judicial consideration or discretion.'"
" (Pettigrew v. Grand Rent-A-Car (1984) 154 Cal.App.3d 204, 209.)

In review of the Motion and the docket in this matter, the Court finds there is a clerical mistake in its 6/26/26 Minute

Order. On its own motion, the Court issues a Nunc Pro Tunc Order to correct the clerical mistake in the 06/26/26 Minute Order.

The 6/26/26 Minute Order, in pertinent part, states: "The Motion to Expunge Lis Pendens filed by Kamyar Moshfegh on 06/25/2026 is Granted." However, this Minute Order pertained to the Ex Parte Application, not the Motion. As such, the Court orders this line STRUCK and REPLACED with the following: "The Ex Parte Application to Advance Motion Hearing filed by Kamyar Moshfegh is Granted."

III.

Conclusion
& Order

Accordingly, Plaintiff Kamyar Moshfegh's Motion to Expunge Lis Pendens or Alternatively to Require Defendant to File an Undertaking and for Attorney's Fees and Costs is DENIED WITHOUT PREJUDICE.

The Court also issues a Nunc Pro Tunc Order regarding the 6/26/26 Minute Order filed in this matter. The 6/26/26 Minute Order, in pertinent part, states: "The Motion to Expunge Lis Pendens filed by Kamyar Moshfegh on 06/25/2026 is Granted." This line is hereby STRICKEN and REPLACED with the following: "The Ex Parte Application to Advance Motion Hearing filed by Kamyar Moshfegh is Granted."

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